

\$1,461.63.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,461.63.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Plaintiff has filed a Motion to enter judgment pursuant to stipulation but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/28/26, 9 a.m.

Plaintiff to provide notice to Defendant of Motion and date of hearing.

3. 9:00 AM CASE NUMBER: L24-06130

**CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. ROSENDO RAMIREZ
GARCIA**

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings against Defendant Doroteo Ramirez. The motion was timely served by mail on Defendant. The Motion is unopposed.

Background

The cause of action is one of subrogation, where Plaintiff reimbursed its policy holder for an event in which Defendant is alleged to have negligently permitted another person driver her vehicle and cause damage to the policy holder.

On 9/16/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 5/21/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 5/21/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint involves a subrogation matter where the claim alleges that Defendant was negligent in allowing another individual to operate to her car, and that this individual's operation of the car caused damage to the policy holder.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of her negligence, and that this negligence was the proximate and but-for cause of the damages that amounted to \$2,220.32.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-06199
CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ
***HEARING ON MOTION IN RE: NOTICE OF AND MOTION FOR ORDERSETTING ASIDE AND VACATING ITSPRIOR ORDER OF DISMISSAL AND FORENTRY OF JUDGMENT PURSUANT TO STIPULATION OF THE PARTIES**